

1.

CASE #	CASE NAME	HEARING NAME
CVCO2605819	BUERMAN vs BLUE HILL SPECIALTY INSURANCE COMPANY	PETITION FOR SPECIAL PROCEEDING

Tentative Ruling:

GRANT

2.

CASE #	CASE NAME	HEARING NAME
CVRI2205432	TRACY III vs CITY OF HEMET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 3RD AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendants' Request for Judicial Notice. SUSTAIN Defendants' Evidentiary Objections. DENY the Motion for Summary Judgment. DENY the Motion for Summary Adjudication as to the first and second causes of action, and for the claim for punitive damages. GRANT the Motion for Summary Adjudication as to the third cause of action.

Assault and Battery (First Cause of Action)

Whether Sergeant Paez's use of force was objectively reasonable requires careful attention to the facts and circumstances of the case, whether the subject posed an immediate threat to the safety of the officers or others, and whether the decedent was actively resisting arrest or attempting flight. Here, without reciting all the facts, Hemet PD Investigators lured decedent out of his motel room by using a confrontational ruse (throwing a bottle through the motel window), and then when he exited the motel room, chased him into the parking lot, where he was shot, never identifying themselves as law enforcement officers. The decedent had a gun which he dropped about 22 feet from where he was shot and killed. Several camera videos captured images of the events that transpired that night. There is testimony about the facts of the case from Sergeant Paez .

Overall, Plaintiffs have arguably established that there are triable issues as to whether the use of deadly force was objectively reasonable under the totality of the circumstances. Any doubt about the propriety of granting the motion is resolved in favor of the party opposing it. (*Marshak v. Ballesteros* (1999) 72 CalApp.4th 1514, 1517.) Moreover, "[Whether a particular use of force was reasonable is rarely determinable as a matter of law." (*Chew v. Gates* (9th Cir. 1994) 27 F.3d 1432, 1443.)

DENY Summary Adjudication.